

CONSTITUTIONAL LAW READING CHECKLIST

WEEK 1 (JAN. 12 & 14): FOUNDATION & JUDICIAL REVIEW †

- [] **Jan. 12:** Declaration of Independence; Articles of Confederation; U.S. Constitution; Intro Themes
- [] **Jan. 14:** Pages 1–37 (Marbury v. Madison, Martin v. Hunter’s Lessee, Cooper v. Aaron)

WEEK 2 (JAN. 19 & 21): JUSTICIABILITY ★

- [] **Jan. 19:** NO CLASS (MLK Day)
- [] **Jan. 21:** Pages 38–71 (Standing, Mootness, Ripeness, Case or Controversy)

WEEK 3 (JAN. 26 & 28): POLITICAL QUESTIONS & FEDERAL POWER †

- [] **Jan. 26:** Pages 71–86 (Political Question Doctrine; Baker v. Carr, Bush v. Gore)
- [] **Jan. 28:** Pages 87–124 (Necessary and Proper Clause; McCulloch v. Maryland)

WEEK 4 (FEB. 2 & 4): THE COMMERCE POWER †

- [] **Feb. 2:** Pages 125–152 (Pre- and Post-New Deal; Wickard v. Filburn)
- [] **Feb. 4:** Pages 152–180 (Lopez, Morrison, Raich, NFIB v. Sebelius)

WEEK 5 (FEB. 9 & 11): TENTH AMENDMENT & TAXING POWER ★

- [] **Feb. 9:** Pages 180–203 (10th and 11th Amendments; Garcia, Printz)
- [] **Feb. 11:** Pages 205–237 (Taxing and Spending Powers; Dormant Commerce Clause Intro)

WEEK 6 (FEB. 16, 17 & 18): DORMANT COMMERCE CLAUSE †

- [] **Feb. 16:** NO CLASS (President’s Day)
- [] **Feb. 17:** (Legislative Monday): Pages 237–274 (Discrimination against Interstate Commerce)
- [] **Feb. 18:** Pages 274–308 (Preemption, Privileges and Immunities Art. IV)

WEEK 7 (FEB. 23 & 25): SEPARATION OF POWERS & WAR POWER †

- [] **Feb. 23:** Pages 309–348 (Youngstown Sheet & Tube, Executive Power)
- [] **Feb. 25:** Pages 348–395 (Habeas Corpus, War on Terrorism)

WEEK 8 (MAR. 2 & 4): EXECUTIVE APPOINTMENTS & IMMUNITY ★

- [] **Mar. 2:** Pages 395–439 (Non-Delegation, Appointment/Removal of Officers)
- [] **Mar. 4:** Pages 439–471 (Executive Privilege, Impeachment, Trump v. United States)

WEEK 9 (MAR. 9–13): SPRING BREAK ★

WEEK 10 (MAR. 16 & 18): INCORPORATION & MIDTERM EXAM †

- [] **Mar. 16:** Pages 473–523 (14th Amendment, Incorporation, 2nd Amendment)
- [] **Mar. 18:** MIDTERM EXAMINATION (**1st Hour**)
- [] **Mar. 18:** Pages 525–548 (Due Process, Lochner)

WEEK 11 (MAR. 23 & 25): PRIVACY & SEXUALITY †

- [] **Mar. 23:** Pages 548–597 (Privacy, Roe, Casey, Dobbs, Marriage)
- [] **Mar. 25:** Pages 597–646 (Sexuality, Obergefell, Right to Die)

WEEK 12 (MAR. 30 & APR. 1): EQUAL PROTECTION ★

- [] **Mar. 30:** Pages 687–732 (Rational Basis, Race Discrimination, Brown v. Board)
- [] **Apr. 1:** NO CLASS (Legislative Friday)

WEEK 13 (APR. 6 & 8): AFFIRMATIVE ACTION & SEX DISCRIMINATION †

- [] **Apr. 6:** Pages 732–796 (Affirmative Action, SFFA v. Harvard)
- [] **Apr. 8:** Pages 808–856 (Sex Discrimination, Alienage, Disability)

WEEK 14 (APR. 13 & 15): STATE ACTION & FREE SPEECH †

- [] **Apr. 13:** Pages 907–977 (State Action, Enforcement Powers under 14th/15th Amend.)
- [] **Apr. 15:** Pages 989–1048 (Free Speech, Clear and Present Danger, Fighting Words)

WEEK 15 (APR. 20 & 22): OBSCENITY & RELIGION †

- [] **Apr. 20:** Pages 1116–1187 (Obscenity, Child Porn, Violent Speech)
- [] **Apr. 22:** Pages 1187–1231; 1655–1777 (Commercial Speech, Free Exercise, Establishment Clause)